

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER 2. CONTRACT NUMBER 3. AWARD/EFFECTIVE DATE 4. ORDER NUMBER 5. SOLICITATION NUMBER N0024426RS003 6. SOLICITATION ISSUE DATE 7. FOR SOLICITATION INFORMATION CALL: a. NAME Russell McCullough b. TELEPHONE NUMBER (No collect calls) 619-556-7312 8. OFFER DUE DATE/ LOCAL TIME 25 Feb 2026 02:00 PM			PAGE 1 OF 77		
9. ISSUED BY NAVSUP FLT LOG CTR SAN DIEGO 3985 CUMMINGS ROAD BLDG 116, SAN DIEGO CA 92136 SAN DIEGO, CA 92136 UNITED STATES Russell McCullough, Email: russell.a.mccullough.civ@us.navy.mil Telephone: 619-556-7312			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☒ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED INDUSTRY CLASSIFICATION ☐ SERVICE-DISABLED ☐ DISADVANTAGED STANDARD (NAICS): ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A) 611692 SIZE STANDARD: USD 10,000,000.00		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING 14. METHOD OF SOLICITATION ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☒ REQUEST FOR PROPOSAL (RFP)		
15. DELIVER TO See Schedule		16. ADMINISTERED BY			
17a. CONTRACTOR/ OFFEROR TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER	18a. PAYMENT WILL BE MADE BY	18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES See Schedule (Use Reverse and/or Attach Additional Sheets as Necessary)	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
25. ACCOUNTING AND APPROPRIATION DATA See Section G - Contract Administration Data			26. TOTAL AWARD AMOUNT (For Government Use Only)		
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED					
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED . _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: See Schedule		
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)		
30b. NAME AND TITLE OF SIGNER (Type or print)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)	31c. DATE SIGNED		

Section A - Solicitation/Contract Form

Motorcycle Safety

Product Service Code: U099

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Allowed Per Order

Minimum: 500.00 Dollars, U.S.

Government Minimum/Maximum to Order

Minimum: 500.00 Dollars, U.S.

Item	Supplies/Service	Estimated Quantity	Unit	Unit Price	Amount
0001	TWO DAY MOTORCYCLE SAFETY FOUNDATION BASIC RIDER COURSE (BRC) LEVEL I - TWO DAY MOTORCYCLE SAFETY FOUNDATION (MSF) COURSE OR EQUIVALENT. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS) ESTIMATED NUMBER OF HOURS PER SESSION: 16 HRS Pricing Arrangement: Firm Fixed Price	1,511	Sessions		
0002	ONE DAY MSF BASIC RIDER COURSE LEVEL II ONE-DAY BASIC RIDER COURSE 2 (BRC-2) LEVEL II - ALSO KNOWN AS EXPERIENCED RIDER COURSE (ERC). TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8HRS Pricing Arrangement: Firm Fixed Price	702	Sessions		
0003	ONE DAY MSF MILITARY SPORT BIKE ONE-DAY MSF MILITARY SPORT BIKE RIDER COURSE (MSRC) OR ADVANCED RIDER COURSE (ARC) LEVEL III. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	898	Sessions		
0004	ONE DAY DIRT BIKE SCHOOL LEVEL I ONE-DAY DIRT BIKE SCHOOL (DBS) COURSE LEVEL I. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PERSESSION: 8 HRS	5	Sessions		

	Pricing Arrangement: Firm Fixed Price				
0005	ONE DAY ALL TERRAIN VEHICLE LEVEL I ONE-DAY ALL TERRAIN VEHICLE (ATV) COURSE LEVEL I. TRAINING TO BE PROVIDE DIN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	12	Sessions		
0006	ONE DAY UTILITY TERRAIN VEHICLE LEVEL I ONE-DAY UTILITY TERRAIN VEHICLE (UTV) COURSE LEVEL I. TRAINING TO BE PROVIDE DIN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	113	Sessions		
0007	NATIONAL SAFETY COUNCIL ALIVE AT 25 ONE-DAY NATIONAL SAFETY COUNCIL ARRIVE ALIVE AT 25 (A@25) COURSE. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	6	Sessions		
0008	TRAVEL THE TOTAL NOT TO EXCEED (NTE) AMOUNT FOR TRAVEL FOR THIS PERIOD OF PERFORMANCE IS \$159,700.00. PARTIAL PAYMNET ARE AUTHORIZED AT THE TASK ORDER LEVEL, TO BE PAID NO MORE FREQUENTLY THAN MONTHLY IN ARREARS FOR ACTUAL AMOUNT IAW THE JOINT TRAVEL REGULATIONS (JTR). NO PROFIT WILL BE PAID ON TRAVEL. Pricing Arrangement: Firm Fixed Price	1	Group		
Option Line Item 1001	TWO DAY MOTORCYCLE SAFETY FOUNDATION BASIC RIDER COURSE (BRC) LEVEL I - TWO DAY MOTORCYCLE SAFETY FOUNDATION (MSF) COURSE OR EQUIVALENT. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS) ESTIMATED NUMBER OF HOURS PER SESSION: 16 HRS Pricing Arrangement: Firm Fixed Price	1,511	Sessions		
	ONE DAY MSF BASIC RIDER COURSE LEVEL II				

Option Line Item 1002	ONE-DAY BASIC RIDER COURSE 2 (BRC-2) LEVEL II - ALSO KNOWN AS EXPERIENCED RIDER COURSE (ERC). TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8HRS Pricing Arrangement: Firm Fixed Price	702	Sessions		
Option Line Item 1003	ONE DAY MSF MILITARY SPORT BIKE ONE-DAY MSF MILITARY SPORT BIKE RIDER COURSE (MSRC) OR ADVANCED RIDER COURSE (ARC) LEVEL III. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	898	Sessions		
Option Line Item 1004	ONE DAY DIRT BIKE SCHOOL LEVEL I ONE-DAY DIRT BIKE SCHOOL (DBS) COURSE LEVEL I. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PERSESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	5	Sessions		
Option Line Item 1005	ONE DAY ALL TERRAIN VEHICLE LEVEL I ONE-DAY ALL TERRAIN VEHICLE (ATV) COURSE LEVEL I. TRAINING TO BE PROVIDE DIN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	12	Sessions		
Option Line Item 1006	ONE DAY UTILITY TERRAIN VEHICLE LEVEL I ONE-DAY UTILITY TERRAIN VEHICLE (UTV) COURSE LEVEL I. TRAINING TO BE PROVIDE DIN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	113	Sessions		
Option Line Item 1007	NATIONAL SAFETY COUNCIL ALIVE AT 25 ONE-DAY NATIONAL SAFETY COUNCIL ARRIVE ALIVE AT 25 (A@25) COURSE. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS).	6	Sessions		

	ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price				
Option Line Item 1008	TRAVEL THE TOTAL NOT TO EXCEED (NTE) AMOUNT FOR TRAVEL FOR THIS PERIOD OF PERFORMANCE IS \$162,454.00. PARTIAL PAYMNET ARE AUTHORIZED AT THE TASK ORDER LEVEL, TO BE PAID NO MORE FREQUENTLY THAN MONTHLY IN ARREARS FOR ACTUAL AMOUNT IAW THE JOINT TRAVEL REGULATIONS (JTR). NO PROFIT WILL BE PAID ON TRAVEL. Pricing Arrangement: Firm Fixed Price	1	Group		
Option Line Item 2001	TWO DAY MOTORCYCLE SAFETY FOUNDATION BASIC RIDER COURSE (BRC) LEVEL I - TWO DAY MOTORCYCLE SAFETY FOUNDATION (MSF) COURSE OR EQUIVALENT. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS) ESTIMATED NUMBER OF HOURS PER SESSION: 16 HRS Pricing Arrangement: Firm Fixed Price	1,511	Sessions		
Option Line Item 2002	ONE DAY MSF BASIC RIDER COURSE LEVEL II ONE-DAY BASIC RIDER COURSE 2 (BRC-2) LEVEL II - ALSO KNOWN AS EXPERIENCED RIDER COURSE (ERC). TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8HRS Pricing Arrangement: Firm Fixed Price	702	Sessions		
Option Line Item 2003	ONE DAY MSF MILITARY SPORT BIKE ONE-DAY MSF MILITARY SPORT BIKE RIDER COURSE (MSRC) OR ADVANCED RIDER COURSE (ARC) LEVEL III. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFROMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	898	Sessions		
Option Line Item 2004	ONE DAY DIRT BIKE SCHOOL LEVEL I ONE-DAY DIRT BIKE SCHOOL (DBS) COURSE LEVEL I. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PERSESSION: 8 HRS	5	Sessions		

	Pricing Arrangement: Firm Fixed Price				
Option Line Item 2005	ONE DAY ALL TERRAIN VEHICLE LEVEL I ONE-DAY ALL TERRAIN VEHICLE (ATV) COURSE LEVEL I. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	12	Sessions		
Option Line Item 2006	ONE DAY UTILITY TERRAIN VEHICLE LEVEL I ONE-DAY UTILITY TERRAIN VEHICLE (UTV) COURSE LEVEL I. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	113	Sessions		
Option Line Item 2007	NATIONAL SAFETY COUNCIL ALIVE AT 25 ONE-DAY NATIONAL SAFETY COUNCIL ARRIVE ALIVE AT 25 (A@25) COURSE. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	6	Sessions		
Option Line Item 2008	TRAVEL THE TOTAL NOT TO EXCEED (NTE) AMOUNT FOR TRAVEL FOR THIS PERIOD OF PERFORMANCE IS \$165,263.00. PARTIAL PAYMENTS ARE AUTHORIZED AT THE TASK ORDER LEVEL, TO BE PAID NO MORE FREQUENTLY THAN MONTHLY IN ARREARS FOR ACTUAL AMOUNT IAW THE JOINT TRAVEL REGULATIONS (JTR). NO PROFIT WILL BE PAID ON TRAVEL. Pricing Arrangement: Firm Fixed Price	1	Group		
Option Line Item 3001	TWO DAY MOTORCYCLE SAFETY FOUNDATION BASIC RIDER COURSE (BRC) LEVEL I - TWO DAY MOTORCYCLE SAFETY FOUNDATION (MSF) COURSE OR EQUIVALENT. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS) ESTIMATED NUMBER OF HOURS PER SESSION: 16 HRS Pricing Arrangement: Firm Fixed Price	1,511	Sessions		
	ONE DAY MSF BASIC RIDER COURSE LEVEL II				

Option Line Item 3002	ONE-DAY BASIC RIDER COURSE 2 (BRC-2) LEVEL II - ALSO KNOWN AS EXPERIENCED RIDER COURSE (ERC). TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8HRS Pricing Arrangement: Firm Fixed Price	702	Sessions		
Option Line Item 3003	ONE DAY MSF MILITARY SPORT BIKE ONE-DAY MSF MILITARY SPORT BIKE RIDER COURSE (MSRC) OR ADVANCED RIDER COURSE (ARC) LEVEL III. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	898	Sessions		
Option Line Item 3004	ONE DAY DIRT BIKE SCHOOL LEVEL I ONE-DAY DIRT BIKE SCHOOL (DBS) COURSE LEVEL I. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PERSESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	5	Sessions		
Option Line Item 3005	ONE DAY ALL TERRAIN VEHICLE LEVEL I ONE-DAY ALL TERRAIN VEHICLE (ATV) COURSE LEVEL I. TRAINING TO BE PROVIDE DIN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	12	Sessions		
Option Line Item 3006	ONE DAY UTILITY TERRAIN VEHICLE LEVEL I ONE-DAY UTILITY TERRAIN VEHICLE (UTV) COURSE LEVEL I. TRAINING TO BE PROVIDE DIN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	113	Sessions		
Option Line Item 3007	NATIONAL SAFETY COUNCIL ALIVE AT 25 ONE-DAY NATIONAL SAFETY COUNCIL ARRIVE ALIVE AT 25 (A@25) COURSE. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS).	6	Sessions		

	ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price				
Option Line Item 3008	TRAVEL THE TOTAL NOT TO EXCEED (NTE) AMOUNT FOR TRAVEL FOR THIS PERIOD OF PERFORMANCE IS \$168,128.00. PARTIAL PAYMNET ARE AUTHORIZED AT THE TASK ORDER LEVEL, TO BE PAID NO MORE FREQUENTLY THAN MONTHLY IN ARREARS FOR ACTUAL AMOUNT IAW THE JOINT TRAVEL REGULATIONS (JTR). NO PROFIT WILL BE PAID ON TRAVEL. Pricing Arrangement: Firm Fixed Price	1	Group		
Option Line Item 4001	TWO DAY MOTORCYCLE SAFETY FOUNDATION BASIC RIDER COURSE (BRC) LEVEL I - TWO DAY MOTORCYCLE SAFETY FOUNDATION (MSF) COURSE OR EQUIVALENT. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS) ESTIMATED NUMBER OF HOURS PER SESSION: 16 HRS Pricing Arrangement: Firm Fixed Price	1,511	Sessions		
Option Line Item 4002	ONE DAY MSF BASIC RIDER COURSE LEVEL II ONE-DAY BASIC RIDER COURSE 2 (BRC-2) LEVEL II - ALSO KNOWN AS EXPERIENCED RIDER COURSE (ERC). TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8HRS Pricing Arrangement: Firm Fixed Price	702	Sessions		
Option Line Item 4003	ONE DAY MSF MILITARY SPORT BIKE ONE-DAY MSF MILITARY SPORT BIKE RIDER COURSE (MSRC) OR ADVANCED RIDER COURSE (ARC) LEVEL III. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFROMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	898	Sessions		
Option Line Item 4004	ONE DAY DIRT BIKE SCHOOL LEVEL I ONE-DAY DIRT BIKE SCHOOL (DBS) COURSE LEVEL I. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PERSESSION: 8 HRS	5	Sessions		

	Pricing Arrangement: Firm Fixed Price				
Option Line Item 4005	ONE DAY ALL TERRAIN VEHICLE LEVEL I ONE-DAY ALL TERRAIN VEHICLE (ATV) COURSE LEVEL I. TRAINING TO BE PROVIDE DIN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	12	Sessions		
Option Line Item 4006	ONE DAY UTILITY TERRAIN VEHICLE LEVEL I ONE-DAY UTILITY TERRAIN VEHICLE (UTV) COURSE LEVEL I. TRAINING TO BE PROVIDE DIN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	113	Sessions		
Option Line Item 4007	NATIONAL SAFETY COUNCIL ALIVE AT 25 ONE-DAY NATIONAL SAFETY COUNCIL ARRIVE ALIVE AT 25 (A@25) COURSE. TRAINING TO BE PROVIDED IN ACCORDANCE WITH THE PERFORMANCE WORK STATEMENT (PWS). ESTIMATED NUMBER OF HOURS PER SESSION: 8 HRS Pricing Arrangement: Firm Fixed Price	6	Sessions		
Option Line Item 4008	TRAVEL THE TOTAL NOT TO EXCEED (NTE) AMOUNT FOR TRAVEL FOR THIS PERIOD OF PERFORMANCE IS \$171,490.00. PARTIAL PAYMNET ARE AUTHORIZED AT THE TASK ORDER LEVEL, TO BE PAID NO MORE FREQUENTLY THAN MONTHLY IN ARREARS FOR ACTUAL AMOUNT IAW THE JOINT TRAVEL REGULATIONS (JTR). NO PROFIT WILL BE PAID ON TRAVEL. Pricing Arrangement: Firm Fixed Price	1	Group		

Section C - Description/Specifications/Statement of Work

Performance Work Statement is incorporated by attachment.

Requirements

CNIC Traffic Safety Program. Contractor will provide training in basic and advanced motorcycle safety classes, basic off-road vehicle safety classes, and driver improvement classes at locations throughout the CONUS, Guam and Hawaii.

Section D - Packaging and Marking

Section E - Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
0002	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
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0004	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS

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	Inspection and Acceptance Location

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Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 1002	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 1003	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR

	Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 1004	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 1005	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 1006	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 1007	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140

	WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 1008	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 2002	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 2003	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052

	CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 2004	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 2005	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 2006	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 2007	Inspection and Acceptance Location Both

	Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 2008	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 3002	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740

Option Line Item 3003	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 3004	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 3005	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 3006	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR

	Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 3007	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 3008	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 4001	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 4002	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140

	WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 4003	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 4004	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 4005	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 4006	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052

	CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 4007	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740
Option Line Item 4008	Inspection and Acceptance Location Both Destination Instructions: INSPECTION AND ACCEPTANCE LOCATIONS DoDAAC: N00052 CountryCode: USA NAVY INSTALLATIONS COMMAND 716 SICARD STREET SE SUITE 1000, WASHINGTON DC 20374-5140 WASHINGTON, DC 20374-5140 UNITED STATES STEPHEN CRIBB, COR Email: STEPHEN.M.CRIBB.CIV@US.NAVY.MIL Telephone: 202-433-4740

Section F - Deliveries or Performance

Line Item	Delivery Schedule	Estimated Quantity	Address and POC
0001	Period of Performance From 29 Mar 2026 To 28 Mar 2027	1,511 Sessions	
0002	Period of Performance From 29 Mar 2026 To 28 Mar 2027	702 Sessions	
0003	Period of Performance From 29 Mar 2026 To 28 Mar 2027	898 Sessions	
0004	Period of Performance From 29 Mar 2026 To 28 Mar 2027	5 Sessions	
0005	Period of Performance From 29 Mar 2026 To 28 Mar 2027	12 Sessions	
0006	Period of Performance From 29 Mar 2026 To 28 Mar 2027	113 Sessions	
0007	Period of Performance From 29 Mar 2026 To 28 Mar 2027	6 Sessions	
0008	Period of Performance From 29 Mar 2026 To 28 Mar 2027	1 Group	
Option Line Item 1001	Period of Performance From 29 Mar 2027 To 28 Mar 2028	1,511 Sessions	

Option Line Item 1002	Period of Performance From 29 Mar 2027 To 28 Mar 2028	702 Sessions	
Option Line Item 1003	Period of Performance From 29 Mar 2027 To 28 Mar 2028	898 Sessions	
Option Line Item 1004	Period of Performance From 29 Mar 2027 To 28 Mar 2028	5 Sessions	
Option Line Item 1005	Period of Performance From 29 Mar 2027 To 28 Mar 2028	12 Sessions	
Option Line Item 1006	Period of Performance From 29 Mar 2027 To 28 Mar 2028	113 Sessions	
Option Line Item 1007	Period of Performance From 29 Mar 2027 To 28 Mar 2028	6 Sessions	
Option Line Item 1008	Period of Performance From 29 Mar 2027 To 28 Mar 2028	1 Group	
Option Line Item 2001	Period of Performance From 29 Mar 2028 To 28 Mar 2029	1,511 Sessions	
Option Line Item 2002	Period of Performance From 29 Mar 2028 To 28 Mar 2029	702 Sessions	
Option Line Item 2003	Period of Performance From 29 Mar 2028 To 28 Mar 2029	898 Sessions	
Option Line Item 2004	Period of Performance From 29 Mar 2028	5 Sessions	

	To 28 Mar 2029		
Option Line Item 2005	Period of Performance From 29 Mar 2028 To 28 Mar 2029	12 Sessions	
Option Line Item 2006	Period of Performance From 29 Mar 2028 To 28 Mar 2029	113 Sessions	
Option Line Item 2007	Period of Performance From 29 Mar 2028 To 28 Mar 2029	6 Sessions	
Option Line Item 2008	Period of Performance From 29 Mar 2028 To 28 Mar 2029	1 Group	
Option Line Item 3001	Period of Performance From 29 Mar 2029 To 28 Mar 2030	1,511 Sessions	
Option Line Item 3002	Period of Performance From 29 Mar 2029 To 28 Mar 2030	702 Sessions	
Option Line Item 3003	Period of Performance From 29 Mar 2029 To 28 Mar 2030	898 Sessions	
Option Line Item 3004	Period of Performance From 29 Mar 2029 To 28 Mar 2030	5 Sessions	
Option Line Item 3005	Period of Performance From 29 Mar 2029 To 28 Mar 2030	12 Sessions	
Option Line Item 3006	Period of Performance From 29 Mar 2029 To 28 Mar 2030	113 Sessions	

Option Line Item 3007	Period of Performance From 29 Mar 2029 To 28 Mar 2030	6 Sessions	
Option Line Item 3008	Period of Performance From 29 Mar 2029 To 28 Mar 2030	1 Group	
Option Line Item 4001	Period of Performance From 29 Mar 2030 To 28 Mar 2031	1,511 Sessions	
Option Line Item 4002	Period of Performance From 29 Mar 2030 To 28 Mar 2031	702 Sessions	
Option Line Item 4003	Period of Performance From 29 Mar 2030 To 28 Mar 2031	898 Sessions	
Option Line Item 4004	Period of Performance From 29 Mar 2030 To 28 Mar 2031	5 Sessions	
Option Line Item 4005	Period of Performance From 29 Mar 2030 To 28 Mar 2031	12 Sessions	
Option Line Item 4006	Period of Performance From 29 Mar 2030 To 28 Mar 2031	113 Sessions	
Option Line Item 4007	Period of Performance From 29 Mar 2030 To 28 Mar 2031	6 Sessions	
Option Line Item 4008	Period of Performance From 29 Mar 2030 To 28 Mar 2031	1 Group	

Section G - Contract Administration Data

CONTRACT ADMINISTRATION

The NAVSUP Fleet Logistics Center San Diego will retain post award administration of this Contract. Contact the Contract Specialist if any post award delivery delays, performance problems, or other issues arise during the performance of this order.

Contracting Officer:

Juana Perez
619-556-6850
juana.m.perez2.civ@us.navy.mil

Contract Specialist:

Russell McCullough
619-556-7312
russell.a.mccullough.civ@us.navy.mil

The Contractor and the Customer are hereby advised that any requests for changes must be submitted in writing to the Contracting Officer, who is authorized to issue written changes/modifications under this contract.

Contracting Officer's Representative:

Stephen (Steve) Cribb
202-433-4070
stephen.m.cribb.civ@us.navy.mil

CONTRACTOR POINT OF CONTACT: TBD

METHOD OF INVOICING: Invoices for materials/services rendered shall be submitted electronically through Wide Area Work Flow (WAWF) IAW DFARS 252.232-7003.

DO NOT SEND INVOICES TO THE NAVSUP FLC SAN DIEGO CONTRACTING DEPARTMENT

PAYMENT: The Government anticipates paying fully certified invoices on a Net 30-day basis. Distribution of payment will be made by Electronic Funds Transfer (EFT) to the contractors account established in the System for Award Management (SAM) database. It is the responsibility of the contractor to review such accounts to ensure that payment has been reviewed.

*****NOTE*****

Partial payment for deliveries of material are hereby authorized upon complete inspection and acceptance by the Government for the partial delivery of material specified under this purchase order.

SALES TAX EXEMPTION: The Contractor is hereby advised that the United States Government and Agencies are exempt from State and Local Government Tax by virtue of Article 6 of the United States Constitution. No exemption certificate is required.

CONTRACT ADMINISTRATION PLAN (CAP) FOR COST TYPE CONTRACTS

In order to expedite the administration of this contract, the following delineation of duties is provided. The names, addresses and phone numbers for these offices or individuals are included elsewhere in the contract award document. The office or individual designated as having responsibility should be contacted for any questions, clarifications or information regarding the administration function assigned.

1. The Procuring Contract Office (PCO) is responsible for:

- a. All pre-award duties such as solicitation, negotiation and award of contracts.
- b. Any information or questions during the pre-award stage of the procurement.
- c. Freedom of Information inquiries.
- d. Changes in contract terms and/or conditions.
- e. Post award conference.

2. The Contract Administration Office (CAO) is responsible for matters specified in FAR 42.302, except those areas otherwise designated as the responsibility of the Contracting Officer's Representative (COR) or someone else herein.

3. The Defense Contract Audit Agency (DCAA) is responsible for audit verification/provisional approval of invoices and final audit of this contract prior to final payment to the contractor.

4. The paying office is responsible for making payment of proper invoices after acceptance is documented.

5. The Contracting Officer's Representative (COR) is responsible for interface with the contractor and performance of duties such as those set forth below. It is emphasized that only the PCO/CAO has the authority to modify the terms of the contract. In no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the contractor and any other person be effective or binding on the government. If in the opinion of the contractor an effort outside the scope of the contract is requested, the contractor shall promptly notify the PCO in writing. No action may be taken by the contractor unless the PCO or CAO has issued a contractual change. The COR duties are as follows:

a. Technical Interface

(1) The COR is responsible for all Government technical interface concerning the contractor and furnishing technical instructions to the contractor. These instructions may include: technical advice/recommendations/clarifications of specific details relating to technical aspects of contract requirements; milestones to be met within the general terms of the contract or specific subtasks of the contract; or, any other interface of a technical nature necessary for the contractor to perform the work specified in the contract. The COR is the point of contact through whom the contractor can relay questions and problems of a technical nature to the PCO.

(2) The COR is prohibited from issuing any instruction which would constitute a contractual change. The COR shall not instruct the contractor how to perform. If there is any doubt whether technical instructions contemplated fall within the scope of work, contact the PCO for guidance before transmitting the instructions to the contractor.

b. Contract Surveillance

(1) The COR shall monitor the contractor's performance and progress under the contract. In performing contract surveillance duties, the COR should exercise extreme care to ensure that he/she does not cross the line of personal services. The COR must be able to distinguish between surveillance (which is proper and necessary) and supervision (which is not permitted). Surveillance becomes supervision when you go beyond enforcing the terms of the contract. If the contractor is directed to perform the contract services in a specific manner, the line is being crossed. In such as situation, the COR's actions would be equivalent to using the contractor's personnel as if they were government employees and would constitute transforming the contract into one for personal services.

(2) The COR shall monitor the contractor's performance to see that inefficient or wasteful methods are not being used. If such practices are observed, the COR is responsible for taking reasonable and timely action to alert the contractor and the PCO to the situation. When contract performance is taking place at a government location, the COR shall also monitor contractor employees performing under the contract with regard to kind, number and hours worked to ensure that the contractor is properly charging time applied to the contract. A record of such personal observations should be kept and compared with charges invoiced by the contractor for that task and time frame. This information can also be used as a tool in evaluating the contractor certificate of performance. It is essential that the COR coordinate these efforts with the CAO designated in the contract.

(3) The COR will take timely action to alert the PCO to any potential performance problems. If performance schedule slippage is detected, the COR should determine the factors causing the delay and report them to the PCO, along with the contractor's proposed actions to eliminate or overcome these factors and recover the slippage. Once a recovery plan has been put in place, the COR is responsible for monitoring the recovery and keeping the PCO advised of progress.

(4) The COR shall maintain surveillance of the contractor's performance to determine if the percentage of work performed reasonably corresponds to the percentage of funds expended. This responsibility requires a thorough review of the contractor's progress reports. The COR shall immediately report to the PCO any difficulties perceived in this area. The COR is also responsible for providing the contractor with any written comments the PCO may make in response to the progress reports and/or personal observations of the COR.

(4) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a Contractor Performance Assessment Report (CPAR) in the CPARS Automated Information System (AIS). The initial CPAR, under an eligible contract, must reflect evaluation of at least 180 days of contractor performance. The completed CPAR, including contractor comments if any, (NOTE: contractors are allowed 30 days to input their comments) should be available in the CPARS AIS for reviewing official (PCO) review no later than 270 days after start of contract performance. Subsequent CPARs covering any contract option periods should be ready at 1-year intervals thereafter.

c. Invoice Review and Approval/Inspection and Acceptance

(1) The COR is responsible for quality assurance of services performed and acceptance of the services or deliverables. The COR shall expeditiously review copies of the contractor's invoices or vouchers, certificate of performance and all other supporting documentation to determine the reasonableness of the billing. In making this determination, the COR must take into consideration all documentary information available and any information developed from personal observations.

(2) The COR must indicate either complete or partial concurrence with the contractor's invoice/voucher by executing the applicable certificate of performance furnished by the contractor. The COR may request DCAA to take a payment offset on questioned costs, when documentary evidence or personal observations do not support submitted invoices. The COR shall notify DCAA when questioned costs have been resolved with the contractor. The COR will ensure that DCAA conducts floor checks and/or timecard checks when actual monitoring is not feasible. The COR will be cognizant of the invoicing procedures and the prompt payment due dates detailed elsewhere in the contract.

(3) The COR will provide the PCO and the CAO with copies of acceptance documents such as Certificates of Performance.

(4) The COR shall work with the Contractor to obtain and execute a final voucher no more than 60 days after completion of contract performance. The COR shall ensure that the voucher is clearly marked as a "Final Voucher."

d. Contract Modifications.

(1) The COR is responsible for developing the statement of work for change orders, technical direction letters (TDLs) or modifications and for preparing an independent government cost estimate of the effort described in the proposed statement of work.

(2) Once the Contracting Officer has requested and received the contractor's proposal the COR shall review and evaluate the contractor's proposal and furnish comments and recommendations.

e. Administrative Duties

(1) The COR is responsible for taking appropriate action on technical correspondence pertaining to the contract and for maintaining files on each contract. This includes all modifications, government cost estimates, contractor invoices/vouchers, certificates of performance, DD 250 forms and contractor's status reports.

(2) The COR shall maintain files on all correspondence relating to contractor performance, whether satisfactory or unsatisfactory, and on trip reports for all government personnel visiting the contractor's place of business for the purpose of discussing the contract.

(3) The COR must take prompt action to provide the PCO with any contractor or technical code request for change, deviation or waiver, along with any supporting analysis or other required documentation.

f. Government Furnished Property. When government property is to be furnished to the contractor, the COR will take the necessary steps to ensure that it is furnished in a timely fashion and in proper condition for use. The COR will maintain adequate records to ensure that property furnished is returned and/or that material has been consumed in the performance of work.

g. Security. The COR is responsible for ensuring that any applicable security requirements are strictly adhered to.

h. Standards of Conduct. The COR is responsible for reading and complying with all applicable agency standards of conduct and conflict of interest instructions.

i. Written Report/Contract Completion Statement

(1) The COR is responsible for timely preparation and submission to the PCO, of a written, annual evaluation of the contractors performance. The report shall be submitted within 30 days prior to the exercise of any contract option and 60 days after contract completion. The report shall include a written statement that services were received in accordance with the Contract terms and that the contract is now available for close-out. The report shall also include a statement as to the use made of any deliverables furnished by the contractor. For contracts where technical direction letters (TDLs) are issued, one consolidated report which addresses all actions under the contract may be submitted.

(2) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a final Contractor Performance Assessment Report (CPAR) in the CPARS with 30 days of contract completion.

(3) The COR is responsible for providing necessary assistance to the Contracting Officer in performing Contract Close-out in accordance with FAR 4.804, Closeout of Contract Files.

6. The Technical Assistant (TA), if appointed, is responsible for providing routine administration and monitoring assistance to the COR. The TA does not have the authority to provide any technical direction or clarification to the contract. Duties that may be performed by the TA are as follows:

- a. Identify contractor deficiencies to the COR.
- b. Review contract deliverables, recommend acceptance/rejection, and provide the COR with documentation to support the recommendation.
- c. Assist in preparing the final report on contractor performance for the applicable contract in accordance with the format and procedures prescribed by the COR.
- d. Identify contract noncompliance with reporting requirements to the COR.
- e. Review contractor status and progress reports, identify deficiencies to the COR, and provide the COR with recommendations regarding acceptance, rejection, and/or Government technical clarification requests.
- f. Review invoices for the appropriate mix of types and quantities of labor, materials, and other direct costs, and provide the COR with recommendations to facilitate COR certification of the invoice.
- g. Provide the COR with timely input regarding technical clarifications for the statement of work, possible technical direction to provide the contractor, and recommend corrective actions.
- h. Provide detailed written reports of any trip, meeting, or conversation to the COR subsequent to any interface between the TA and contractor.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

====
(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

====
(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	=====
Issue By DoDAAC	=====

Admin DoDAAC	=====
Inspect By DoDAAC	=====
Ship To Code	=====
Ship From Code	=====
Mark For Code	=====
Service Approver (DoDAAC)	=====
Service Acceptor (DoDAAC)	=====
Accept at Other DoDAAC	=====
LPO DoDAAC	=====
DCAA Auditor DoDAAC	=====
Other DoDAAC(s)	=====

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

=====

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

DESIGNATION OF ORDERING ACTIVITY

The following Naval activity is hereby authorized to place delivery orders:

NAVSUP FLC San Diego Code 200

3985 Cummings Road

San Diego, CA 92136-4000

The Contracting Officer will issue a letter to the contractor coincident with contract award listing the authorized ordering officer(s) by name. The authorized ordering officer is responsible for issuing and administering any orders placed hereunder. Ordering officers have no authority to modify any provisions of the basic contract. Any deviations from the terms of the basic contract must be submitted to the Procuring Contracting Officer (PCO) for contractual action. Terminations of delivery orders for convenience or for default shall be issued only by the PCO.

MINIMUM AND MAXIMUM QUANTITIES

As referred to in paragraph (b) of the "Indefinite Quantities" clause of this contract, the contract minimum quantity is a total of \$500.00. The maximum quantity is the total estimated quantity for each item as set forth in the schedule. The maximum quantity shall not be exceeded except as may be provided by formal modification to the contract.

GOVERNMENT REVIEW OF RESUMES

The Government reserves the right to review the resumes of contractor employees performing under the contract solely for the purpose of ascertaining their qualifications relative to the personnel qualifications terms of the contract. Accordingly, the contractor shall furnish such resumes to the Contracting Officer upon request by the Contracting Officer's Representative, Ordering Officer or Contracting Officer.

I. ORDERING PROCEDURES

All orders shall be placed by an authorized ordering officer prior to issuance of material to any government employee. NAVSUP FLCSD will place orders. The ordering office will issue a task order specifying the type of classes and numbers required. Class locations shall be specified on a spreadsheet and provided to the contractor as an attachment at task order level. Additionally, if any travel is required, the COR shall specify the amount as a Not to Exceed (NTE) any travel must be approved by the COR. The contractor shall fill all orders IAW the basic contract PWS.

Task Orders. A Task Order is an order for services made against an Indefinite Delivery type contract. The award of a Task Order requires the following:

Requiring activity must determine its requirements and prepare a spreadsheet identifying the types and number of classes and locations. Based on these requirements a task order will be issued to the contractor.

Ordering Period. Task Orders may be placed during the contract performance period. The Ordering Period is the same as the contract period of performance. This means that as long as there is a contract in place, Task Orders may be issued if there is contract ceiling remaining. Task Orders issued during the ordering period may be for a period of up to 12 months.

II. MINIMUM/MAXIMUM QUANTITIES AND MINIMUM GUARANTEE

The Government minimum obligation is a quantity of one class. Both the accounting and appropriation data will be established at the Task Order level. As referred to in paragraph (b) of FAR 52.216-22, Indefinite Quantity, the total contract maximum award made will be the awarded amount of the contract, including all options.

III. CEILING

Contractors are responsible for tracking the ceiling for each ordering period for motorcycle traffic safety training courses each year.

SUPTXT243-9400(1-92) AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

Insert the following text in solicitations and contracts, when it is anticipated that liaison and communication between contractor and government technical personnel will be required.

AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of government personnel who visit the contractor's facilities or in any other manner communicate with contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The contractor shall not comply with any order, direction or request of government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Contracting Officer is:

NAME: _____

ADDRESS: _____

TELEPHONE: _____

SUPTXT 203.1106-1 (3-18) NAVY USE OF ABILITYONE SUPPORT CONTRACTOR - RELEASE OF OFFEROR INFORMATION

NAVSUP FLC San Diego may utilize contractor support through the AbilityOne Program, as needed, to perform contract closeout functions for this acquisition. Information, including business sensitive/confidential or proprietary data, that the offeror provides to the government or information already in the possession of the government may be viewed and utilized by the AbilityOne Program support contractor personnel during the course of its contract performance. The information that may be made available to the support contractor may include, for example, pricing and technical proposals, historical contract, pricing and performance information, Commercial Asset Visibility (CAV) reporting information and similar data /information.

By submission of a proposal in response to this solicitation, the offeror and its subcontractors consent to a release of their business sensitive /confidential or proprietary data to the government's AbilityOne Program support contractor personnel. AbilityOne will have a Non-Disclosure/Non-Use Agreement in place with the Government in order to comply with DFARS 252-227-7025. The offeror retains the right to engage AbilityOne in a non-disclosure agreement pursuant to DFARS 252.227-7025(b)(5)(iv).

TRAVEL AND PER DIEM EXPENSES IAW JOINT TRAVEL REGULATIONS (JTR)

Travel expenses incurred in the performance of the contract will be reimbursed on the basis of actual costs when the facilities of a common carrier are used or on the basis of reasonable actual costs when performed by a privately owned vehicle not to exceed prevailing Federal Travel Regulation mileage rates.

Reimbursement for travel by commercial air transport in connection with the performance of work hereunder shall be reimbursed on the basis of cost, provided such reimbursement does not exceed the costs of jet coach, if such accommodations are available from established air carriers to destination, and there is a necessity for arrival there at a prescribed time schedule, and all other factors considered.

All such travel must be approved in advance by the Contracting Officer Representative (COR) in writing.

If applicable, G&A or such other administrative costs may be added to travel or per diem expenses in accordance with the contractor's established policy. In no event, however, shall reimbursement be made hereunder in excess of amounts normally paid by the contractor to employees engaged in comparable functions the cost of which is not reimbursed under Government contracts, nor exceeding those costs considered acceptable pursuant to the provisions of the contract or by Subpart 31.2 of the Federal Acquisition Regulation in effect on the date of this contract. Actual invoices are required for travel reimbursement.

ADVERTISING OF AWARD

The Contractor agrees not to refer to awards in commercial advertising in such a manner as to state or imply that the product or service provided is endorsed or preferred by the Federal Government or is considered by the Government to be superior to other products or services. Contractor shall submit all proposed advertising to the COR prior to publication.

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.212-5 **Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services.** (Oct 2025)

CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- ☐ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).
- ☒ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).
- ☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- ☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).
- ☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).
- ☐ (6) [Reserved].
- ☐ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).
- ☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).
- ☐ (11)
- (i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).
- ☐ (ii) Alternate I (DEC 2023) of 52.204-30.
- ☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).
- ☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).
- ☐ (14) [Reserved].
- ☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).
- ☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ☐ (17) [Reserved]
- ☒ (18)
- (i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-6.
- ☐ (19)
- (i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-7.
- ☒ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025)(15 U.S.C. 637(d)(2) and (3)).

☐ (21)

(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (NOV 2016) of 52.219-9.

☐ (iii) Alternate II (NOV 2016) of 52.219-9.

☐ (iv) Alternate III (JUN 2020) of 52.219-9.

☐ (v) Alternate IV (JAN 2025) of 52.219-9.

☐ (22)

(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (MAR 2020) of 52.219-13.

☒ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

☒ (26)

(i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (MAR 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

☒ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

☐ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).

☐ (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

☐ (34)

(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

☐ (ii) Alternate I (FEB 1999) of 52.222-26.

☒ (35)

(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JUL 2014) of 52.222-35.

☒ (36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

☒ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

☒ (39)

(i) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☒ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

☒ (47)

(i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).

☐ (ii) Alternate I (JAN 2017) of 52.224-3.

☐ (48)

(i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).

☐ (ii) Alternate I (OCT 2022) of 52.225-1.

☐ (49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

☐ (ii) Alternate I [Reserved].

☐ (iii) Alternate II (JAN 2025) of 52.225-3.

- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).
- ☒ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).
- ☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).
- ☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).
- ☒ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
- ☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).
- ☐ (65)
- (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
- ☐ (ii) Alternate I (APR 2003) of 52.247-64.
- ☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- ☒ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
- ☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☒ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

- ☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- ☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).
- ☐ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- ☒ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- ☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).
- ☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

- (xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
 - (xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
 - (xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.
 - (xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
 - (xvi)
 - (A) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).
 - (B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
 - (xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
 - (xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).
 - (xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).
 - (xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
 - (xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
 - (xxii)
 - (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).
 - (B) Alternate I (JAN 2017) of 52.224-3.
 - (xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
 - (xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
 - (xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.
 - (xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
 - (xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.
- (2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-18 Ordering.

(Aug 2020)

ORDERING (AUG 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from March 29, 2026 through March 28, 2027[insert dates].
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) A delivery order or task order is considered "issued" when-
 - (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
 - (3) If sent electronically, the Government either-

- (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
- (ii) Distributes the delivery order or task order via email to the Contractor's email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations.

(Oct 1995)

ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than 500[insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

- (1) Any order for a single item in excess of 400 sessions[insert dollar figure or quantity];
 - (2) Any order for a combination of items in excess of 825 sessions[insert dollar figure or quantity]; or
 - (3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.
- (c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 5 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity.

(Oct 1995)

INDEFINITE QUANTITY (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after March 28, 2026[insert date].

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 1 Day[insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 Day[insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 1 days[*60days unless a different number of days is inserted*] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months(months) (years).

(End of clause)

Section J - List of Attachments

Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	Attachment 1 MC Safety PWS 2026	Performance Work Statement		03 Feb 2026
02	Attachment 2 Training Locations			03 Feb 2026
03	Attachment 3 Class Estimates			03 Feb 2026
04	Attachment 4 Offerors Past Performance Data OPPD			03 Feb 2026
05	Attachment 5 Wage Determinations	Wage Determination		03 Feb 2026
06	Attachment 6 QASP			03 Feb 2026

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.	Dec 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)

REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that-

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation.

(Oct 2020)

COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)

(1) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.209-7 Information Regarding Responsibility Matters.

(Oct 2018)

INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.212-3 Services.

(Oct 2025)

OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended."Sensitive technology"-

Sensitive technology-

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).
- (3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.
- (2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

- (1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-
 - (i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and
 - (ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

- (1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
- (2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

- (1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and
- (2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) *Annual Representations and Certifications.* Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(2) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246-

(1) Previous contracts and compliance. The offeror represents that-

(i) It ☐ has, ☐ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ☐ has, ☐ has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that-

(i) It ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions (31 http://uscode.house.gov/ U.S.C. 1352).* (Applies only if the contract is expected to exceed \$200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to

this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate.* (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.
==
==
==

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
=====	=====
=====	=====
=====	=====

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment*. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples*.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin
==	==
==	==

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) ☐

(ii) ☐

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: ____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

class="p">

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other ____.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name ____.

TIN ____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that-

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals.* Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].

(i) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported: ____.

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services. (Alternate I) (Oct 2025) Alternate I (Feb 2024)

Alternate I (FEB 2024). As prescribed in 12.301 (b)(2), add the following paragraph (c)(12) to the basic provision:

(12) (Complete if the offeror has represented itself as disadvantaged in paragraph (c)(5) of this provision.)

☐ Black American.

☐ Hispanic American.

☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

☐ Individual/concern, other than one of the preceding.

52.219-1 Small Business Program Representations. (Alternate I) (Feb 2024) Alternate I (Feb 2024)

Alternate I (FEB 2024). As prescribed in 19.309 (a)(2) add the following paragraph (c)(10) to the basic provision:

(10) [Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.] The offeror shall check the category in which its ownership falls:

☐ Black American.

- ☐ Hispanic American.
- ☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).
- ☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).
- ☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).
- ☐ Individual/concern, other than one of the preceding.

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

- (1) It ☐ is ☐ is not a foreign person; and
- (2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

- (1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and
 - (2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.
- (f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7017 **Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.** (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Section L - Instructions, Conditions & Notices

CLAUSES INCORPORATED BY FULL TEXT:

52.233-2 SERVICE OF PROTEST (SEP 2006)

Protests, as defined in section 31.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Ms. Juana Perez, Contracting Officer, FLCSD San Diego Code 240, 3985 Cummings Road, Building 116-3rd Floor-South End, San Diego CA 92136-4200.

The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

1.0 GENERAL INSTRUCTIONS

1.1 This solicitation is issued for a small business set-aside (SBSA).

1.2 The Government contemplates award of a single Indefinite Delivery Indefinite Quantity (IDIQ) contract with the ability to place Firm fixed Price (FFP) task orders from this solicitation. The resultant contract is for program level support on Motorcycle Traffic Safety designed to sustain and preserve the well-being of today's motorcyclist service members in accordance with the PWS provided herein. Award will be based on a best value trade-off procurement under Federal Acquisition Regulations (FAR) Part 12, Acquisition for Commercial Items and FAR Part 15, Contracting by Negotiation. Award will consist of a one-year base period of performance followed by four one-year option periods.

1.3 For evaluation purposes only, offerors are instructed to price out a six-month option at the end of the last option period. Evaluation of contractor prices will include five- and one-half years. However, the awarded contract will be made on a five-year effort, and the six-month option will be incorporated only if clause 52.217-8 is exercised.

1.4 All offers must be received by the date specified in the RFP. The posted closing date and time applies to all submissions, as well as to all parts of the proposal which are to be considered for award. Any proposal modification or revision not received/submitted in the portal by the exact time specified for receipt of offers is "late" and will not be considered.

1.5 Offerors shall not take exception to any term or condition of this RFP, propose any additional term or condition, or omit any required information. Offerors that take exception to the Government's technical requirements, propose any additional term or condition, or omit any required information without prior resolution with the Contracting Officer might be eliminated from consideration. The Offeror's initial proposal should contain the Offeror's best terms from a price and technical standpoint.

1.6 The Government intends to evaluate proposals and award an IDIQ contract based upon initial written proposals. However, the Government may contact any or all or a limited number of Offerors with questions concerning its responses as permitted under FAR Part 12, 15, and 16.

1.7 Questions regarding any aspect of this procurement shall be submitted in writing via email only and addressed to the Contract Specialist Russell McCullough at Russell.a.mccullough.civ@us.navy.mil. Other methods of question submittal will not be acknowledged. The Government will make every attempt to answer all questions in a timely manner; however, questions submitted within 7 calendar days of the posted closing date may not allow enough time to respond and offerors are not guaranteed a response. All questions and answers will be posted for viewing by all other potential offerors.

1.8 Offerors shall submit proposals electronically via email to the Contract Specialist, Russell McCullough, at russell.a.mccullough.civ@us.navy.mil. To ensure proper receipt and handling, the subject line of the submission email should adhere to the following format: "**Proposal Submission - N0024426RS003 - [Offeror's Company Name]**". The complete proposal, including all volumes and attachments, must be submitted in a single email. If file size limitation are a concern, multiple emails may be used, but they must be clearly labeled (e.g. "Email 1 of 3, Email 2 of 3") in the subject line. Proposals must be successfully received by the Government no later than the closing date and time specified in the solicitation. Offerors are solely responsible for ensuring their proposals is received by the deadline. It is recommended that offerors submit their proposal well in advance of the closing time to mitigate any risks of technical issues. An email acknowledgement receipt will be sent by the Government upon successful delivery of the proposal. Offerors who do not receive an acknowledgment within one business day should contact the Contract Specialist to verify receipt.

THE GOVERNMENT RESERVES THE RIGHT TO REJECT ANY PROPOSAL THAT DOES NOT COMPLY WITH PROPOSAL PREPARATION/SUBMISSION INSTRUCTIONS CONTAINED IN SECTION L.

2.0 PROPOSAL FORMAT AND CONTENT

2.1 Offerors shall submit their proposals in the following format:

Volume I - Offer

Volume II - Technical Proposal

Volume III - Past Performance

Volume IV - Price

Volume Name	Page Limit
Volume I - Offer	Unlimited

Volume II - Technical Proposal*	35 pages exclusive of an acronym list, cover page, and table of contents.
Volume III- Past Performance	3 pages per reference. Number of Past Performance references are limited to a maximum of 3 for Prime contractors. Offeror may submit no more than three (3) OPPDs. Subcontractors may submit no more than two (2) OPPDs. OPPD submission and reference page(s) are excluded from page count.
Volume IV- Price**	Unlimited

*Note Volume II must not contain any price or cost information.

**Offerors may submit a Price narrative in word but shall submit a detailed price breakdown in excel format.

2.2 Proposals are to be submitted in electronic format. Documents shall be submitted in Adobe PDF, Microsoft Word, or Excel format. Zip files are not allowed. Any other formats may not be accessed and may be determined as mishandled.

2.3 Proposals must be legible, in Microsoft Word and have a font size of 12 point or higher. Tables, charts, and graphic depictions may be single space but limited to data and reference material presentation and textual summarizations only. Tables, charts, and graphic depictions may be used to increase the clarity and readability of the proposal but should not be used to circumvent page or font limitations set forth for the proposal.

2.4 All pages in each volume shall be numbered sequentially (i.e., 1-30); pages identified above that are not included in the page limitation may be number differently or not at all. The Government will only evaluate that part of the proposal that complies with the instructions set forth herein.

3.0 PROPOSAL CONTENT

Each proposal shall include the following:

3.1 Cover Letter: Offerors shall provide a cover letter with the following information (both Prime and Subcontractors):

- Solicitation number and requirement title, "COMMANDER NAVY INSTALLATIONS COMMAND (CNIC) MOTORCYCLE TRAFFIC SAFETY PROGRAM"
- The name, address, e-mail address, and telephone number of the Offeror;
- A statement confirming agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which price are offered at the price set opposite each item;
- A statement that the proposal is valid through 180 calendar days from the date specified or receipt of proposals;
- Names, titles, telephone number, and e-mail addresses of persons authorized to negotiate on the Offeror's behalf with the Government in connection with this solicitation;
- Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office. The Offeror's signature on their proposal indicates the company will meet all requirements of the SOW/PWS, without exception;

- Identify all enclosures being transmitted as part of the offeror's proposal; and
- If an Offeror believes no organizational conflict(s) of interest exists, an affirmative statement that no such conflict exists shall be included in the cover letter

3.2 Volume I - OFFER

3.2.1 Complete and submit the following, which will constitute Volume I:

- a. Standard Form 1449, "Solicitation, Offer, and Award" with blocks 17a, 30a, 30b, and 30c completed with original signatures The proposed ceiling price for each Contract Line Item Number (CLIN).
- b.) FAR Clause 52.212.3 - Offeror Representations and Certifications-Commercial Items (OCT 2025) Alternate I including additional RFP Certification requirements set forth herein
- c. Acknowledgement of any and all RFP amendments, by electronic signature and title on each applicable Standard Form 30.

4.0 Volume II - TECHNICAL PROPOSAL

4.1 Clarity and completeness of the proposal are of the utmost importance. The proposal must be written in a practical, clear, and concise manner. It must use quantitative terms whenever possible and must avoid qualitative adjectives to the maximum extent possible. The proposal must convey evidence the offeror understands all RFP and PWS requirements and their interrelationships. It must demonstrate the Offeror's familiarity with the detailed aspects of the requirements, and clearly show that the offeror correctly interpreted all of the requirements. Offerors are cautioned against restating PWS requirements in their proposal, particularly with regard to technical requirements; and must state how all RFP and PWS requirements will be met. Statements such as "the offeror understands" and "the offeror shall/can comply", along with reference or industry references) does not reflect that the offeror understands the requirements, and will likely result in a diminished evaluation rating.

4.2 Volume II is Factor I Technical Proposal and is comprised of two Sub-factors: Sub factor (1) - Technical Approach and Sub factor (2) - Management Approach/Staffing Plan. No cost or pricing information shall be included in any part of the Technical Volume.

4.3 Volume II should be organized in a manner to permit independent evaluation of each sub-factor under the Technical Proposal. Each sub-factor should be clearly identified and discussed in greater detail. The proposal must clearly discuss how the offer intends to comply with each sub-factor.

4.4 Sub-factor (1) Technical Approach

4.3.1 The technical proposal shall provide, in detail, an approach that will successfully demonstrate the offeror's understanding and plan to complete all requirements set forth in the solicitation. Offerors are cautioned not to provide statements paraphrasing the PWS or parts thereof and using phrases such "standard procedures will be employed" or "well known techniques will be used," etc., will be considered unacceptable. Offerors should provide narratives, charts, and documentation demonstrating its Technical Approach.

4.3.2 Technical areas to be addressed include technical expertise to provide professional training by certified instructors for the trainings listed in PWS Section 4.1.2, developing 90-day traffic course schedules, maintaining the CNIC N35 System of Record, optimizing class sizes, providing training motorcycles, and providing instructional material to each student.

4.3.3 Security Requirements: The offeror shall document how they will comply with the security requirements in PWS Section 6.0 and 7.0.

4.4 Sub-factor (2) Management Approach/Staffing Plan

4.4.1 The proposal must provide a Management Approach and Staffing Plan describing how the offeror will perform this requirement across the Continental United States (CONUS), Guam and Hawaii. The proposal shall clearly explain the Offeror's approach to organizing, staffing, and managing all training requirements.

4.4.2 Program Management: Offeror shall describe overall management structure, key roles, communication processes, and methods for coordinating multiple Navy regions and varying training demands. In addition, offeror shall describe how contractor-owned training motorcycles for BRC-1 courses will be managed for student use.

4.4.3 Instructor Staffing and Certification: Offeror shall describe proposed staffing levels, methods for ensuring availability of certified instructors in accordance with PWS Section 4.02 and 7.0, process for tracking/maintain required certifications, and plans for backfill and turnover

4.4.4 Training Delivery and Quality Control: Offeror shall describe approach to ensuring consistent, compliant course delivery; internal oversight; performance monitoring; and correction of training deficiencies.

4.4.5 Geographic Coverage: Offeror shall describe approach to supporting all required locations (attachment 2) - through instructor placement, travel, and logistics.

4.4.6 Transition: The offeror shall provide a plan for achieving full operation capability once the contract is award.

4.4.7 Subcontractor(s): Each offer shall address what role, if any subcontractor(s) will play and its relationship with the prime contractor.

5.0 Volume III- Past Performance Confidence

5.1 Offerors should provide relevant past performance information for similar or related work under contracts completed during the last five years. Offerors may submit performance data regarding current contract performance as long as a minimum of one year of performance has been completed as of the closing date of this solicitation. Each Offeror has the opportunity to provide in its proposal any information regarding its past performance of contracts similar to the Government's requirement that it would like the Government to consider. The Offeror may include Federal, State and Local Government and private sector contracts.

5.2 Offerors shall contact their past performance references and request that each reference complete the "Offeror's Past Performance Data" (OPPD) - Section J. Completed OPPDs shall be submitted by email directly to Russell.a.mccullough.civ@us.navy.mil no later than the closing date of this solicitation. The subject line of the emailed OPPD must read "SOLICITATION N00244-26-R-S003 OPPD". Offerors may submit no more than three (3) OPPDs as the prime contractor and offered subcontractors may submit no more than two (2) OPPDs.

5.3 In addition to the OPPD, Offeror's shall include in Volume III, a one to two-page document listing all potential references. Information to be provided is reference name, address, phone number, email address, and any other identifying information with respect to the OPPD such as Contract Number or type of work provided.

Failure to submit any past performance references shall be considered certification that the offeror has no past performance in relevant services for the Government to evaluate.

6.0 Volume IV - Price

6.1 Each offeror's price proposal must be submitted in a spreadsheet format and the required soft copy must be in Excel format. Do not submit this spreadsheet in PDF format. The spreadsheet must list the factors used to calculate the billing rates for the base year and each option period. Training courses and Travel shall be in accordance with those specified herein. Price per session shall include any applicable educational course fee involved. There is no page limitation for Price information.

6.2 The price volume shall be a complete and detailed breakdown and include all elements of price and such other data as considered appropriate to support the Offeror's proposal. Offerors are required to propose for travel using the ceiling amounts (not to exceed) provided in this solicitation for the base period and each option year. (inclusive of handling) for the base and each option year.

Base	\$159,700.00
Option Year One	\$162,454.00
Option Year Two	\$165,263.00
Option Year Three	\$168,128.00
Option Year Four	\$171,050.00

6.3 Offerors are instructed to price a six-month option at the end of the option period four. The six-month option should not exceed 50% of the last option year. Should clause 52.217-8 Option to Extend Services be executed, the six-month option will be incorporated into the contract by a contract modification.

6.4 Cost/Price Realism: A cost/price realism will not be performed for the evaluation.

6.5 Price Narrative: Offerors may submit a price narrative in word but shall submit a detailed price breakdown in excel format.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
52.201-1	Acquisition 360: Voluntary Survey.	Sep 2023		
52.204-7	System for Award Management.	Nov 2024		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Sep 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Oct 2025		

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable ____*[U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification]*.

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Section M - Evaluation Factors for Award

Section M - Evaluation Factors

Section M - Evaluation Factors

1.0 Basis for Award:

1.1 The award resulting from this solicitation will be an Indefinite Delivery Indefinite Quantity (IDIQ) contract with the ability to place Firm Fixed Price (FFP) task orders without discussion as authorized by FAR 52.215-4. The contract will consist of a one-year base period and four one-year option periods, to be exercised at the discretion of the Government.

1.2 The Government will utilize the Best Value Tradeoff source selection process. This process allows for a tradeoff between non-cost factors and cost/price, and allows the Government to accept other than the lowest priced proposal or other than the highest technically rated proposal to achieve a best value contract award. The basis for award of a contract as a result of this solicitation will be an integrated assessment by the Contracting Officer of the results of the evaluation based on the evaluation factors and their importance as indicated below.

The integrated assessment will include consideration of the strengths and weaknesses of the proposals. The Government reserves such right of flexibility in conducting the evaluation as is necessary to assure placement of a contract is in the Government's best interest. Accordingly, the Government may award to other than the lowest priced Offeror, or other than the Offeror with the highest evaluation rating.

1.3 The contract resulting from this solicitation will be awarded to that responsible Offeror whose offer, conforming to the solicitation, in the Government's estimation, provides the greatest overall benefit in response to the requirement. The Government intends to evaluate proposals and award based on initial proposals. Offerors that take exception to the Government's technical requirements, propose any additional term or condition, or omit any required information without prior resolution with the Contracting Officer might be eliminated from consideration. However, the Government reserves the right to conduct exchanges/discussion with any or all or a limited number of offerors, if necessary, and to permit such offerors to revise their proposals, if discussions are conducted, a competitive range will be established in accordance with FAR 15.306. Contractors are hereby instructed that, regardless of any language that may be used in this solicitation, the contract evaluation and award will be conducted pursuant to FAR Subpart 15.3.

1.4 Offerors are advised that the Government reserves the right to reject any proposal that does not comply with proposal preparation /submission instructions contained in section L.

2.0 Evaluation Factors and Grading Criteria.

The Government will evaluate proposals based on the following three Factors and Sub-factors.

2.1 Factor I - Technical

Sub-factor (1) - Technical Approach

Sub-factor (2) - Management Approach/Staffing Plan

2.3 Factor II - Past Performance Confidence

2.4 Factor III - Price

3.0 Relative Weights:

3.1 Factor I (Technical), Factor II (Past Performance Confidence), and Factor III (Price) are listed in descending order of importance. The non-cost factors (Factor I (Technical), Factor II (Past Performance Confidence), when combined are significantly more important than Factor III (Price). However, Price may become more determinative in the event competing technical ratings are closely grouped and offer comparable value to the Government.

3.2 There are two sub-factors under Factor I (Technical): Sub-factor (1) Technical Approach and Sub-factor (2) Management Approach/Staffing Plan. These two sub-factors are in descending order of importance and will be used to establish an overall rating for Factor I. An "Unacceptable" in any sub-factor will result in an overall Factor I rating of "Unacceptable," rendering the entire proposal ineligible for award.

3.3 Award will be made to that Offeror whose proposal contains the combination of those criteria offering the best overall value to the Government. In making this comparison the Government is more concerned with obtaining superior Technical (Factor I) and Past Performance Confidence (Factor II), than obtaining the lowest Price (Factor III).

4.0 Factor I Technical Grading Criterion: The Technical Capability Evaluation criterion includes two (2) sub-factors, listed in descending order of importance. The Government will assess the Offeror's Technical proposal with respect to its compliance with the solicitation requirements and the risk associated with the Offeror's approach through the assessment of the strengths, weaknesses, and deficiencies.

4.1 Sub-factor (1) Technical Approach Evaluation Criteria:

4.1.1 The Government will evaluate the Offeror's proposal to determine the Offeror's understanding of, approach to, and ability to meet the solicitation requirements. The Government will evaluate the extent to which the Offeror's technical approach demonstrates the Offeror's ability to accomplish the specified work in a technically competent, timely, cost effective manner with a minimum of risk to the Government. The narrative will be evaluated for a complete analysis of the performance requirements and explanation of the processes, best practices and other methods the Offeror proposes to use to meet each requirement stated in the PWS.

4.2 Sub-factor (2) Management Approach/Staffing Plan Evaluation Criteria:

4.2.1 The Government will evaluate the Offeror's Management Approach and Staffing Plan to determine the completeness and effectiveness of the Offeror's proposed methodology for managing, staffing, and administering nationwide motorcycle training operation.

5.0 Adjectival Ratings for the Technical Volume Proposal

The following table M-1 of Ratings shall be used for the Technical/Risk Rating for each Sub-factor and for Factor (I). The overall Factor I (Technical Capability) rating will be determined by evaluating the ratings for each of the sub-factors. The overall rating will be used for tradeoff analysis. Inherent in the Factor (I) rating definition is a component for risk, reflecting the projected risk of the proposed approach to successfully perform the contract. No Technical Proposal may be given more than a marginal rating unless the proposal clearly shows that the offer meets requirement as defined by the PWS and all RFP attachments.

Table M-1	Combined Technical/Risk Rating
Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

5.1 Unacceptable Rating. Any proposal receiving a score of "unacceptable" in a factor or any sub-factor will render the entire proposal ineligible for award.

6.0 Factor II - Past Performance Confidence Grading Criteria

6.1 The Government will assign one relevancy rating for each past performance effort submitted and one rating for overall confidence.

6.2 The assessment of offeror's past performance will be used by the Government as a means to evaluate the relative capability of the offeror and other competitors to successfully meet the requirements of the PWS and as a measure of performance risk for contract award, taking relevancy and how recent into consideration. Contractor Performance Assessment Reports (CPARS) will also be accessed to locate recent and relevant information.

6.3 The assessment of the Offeror's past performance will be used by the Government as a means to evaluate the relative capability of the Offeror and other competitors to successfully meet the requirements of the PWS and as a measure of performance risk for contract award. The government's assessment of performance risk is not intended to be the product of a mechanical or mathematical analysis of an offeror's performance on list of contracts, but rather the product of subjective judgment of the government after it considers all available relevant and recent information.

6.4 The rating tables identified below as "Past Performance Relevancy Rating" Table and "Past Performance Confidence Assessment" Table will be utilized for the assignment of ratings for relevancy and confidence assessment.

6.5 Relevancy. Each past performance data sheet will be evaluated to determine whether the work performed by the Offeror is relevant to the instant requirement. Relevant past performance is performance under contracts accomplished within the past five (5) years that is of the same or similar scope, complexity, and magnitude to that which is described in the solicitation.

The Government will assign one relevancy rating for each past performance effort submitted using the four levels of relevancy as shown in "Past Performance Relevancy Rating" Table below. Past performance of greater relevancy will typically be a stronger predictor of future success and have more influence on the past performance confidence assessment than past performance of lesser relevance. Past performance reference that has no relevance to the instant requirement will not be evaluated favorably or unfavorably and will not be considered in the overall assessment of Past Performance Confidence. However, the number of more relevant contracts an offeror has, the higher the confidence may be.

Table M-2	Past Performance Relevancy Rating
Rating	Definition
Very Relevant	Present/past performance effort involved is essentially the same scope and magnitude of the effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved is similar in scope and magnitude of the effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved has little or none of the scope and magnitude of effort and complexities this solicitation requires.

6.6 Each past performance reference under each offeror's Past Performance submission that is found to have at least some relevance to the instant requirement will be evaluated to determine the quality of the offeror's performance under that reference. The Government will focus its inquiry of the Offerors record of performance as it relates to timeliness, quality, cost control, and customer satisfaction.

6.7 Quality of the relevant past performance will form the basis for the Performance Confidence Assessment. The quality of performance that has no relevance to the instant requirement will not be considered in the overall assessment of Performance Confidence. An offeror that is determined to have no relevant Past Performance will be rated as Unknown Confidence (Neutral).

6.8 The Government will assign one Past Performance Confidence rating to each Offeror using the five levels of confidence as shown in "Past Performance Confidence Assessment" Table below. This rating will become the Offeror's overall rating for Past Performance.

Table M-3	Performance Confidence Assessment
Rating	Definition
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation reasonable expectation that the offeror will successfully perform the required effort.

Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

7.0 Factor III - Price

7.1 Although price is less significant to other award factors, it should not be ignored. The degree of its importance will increase with the degree of equality of proposals in relation to these other award factors or when it is so significantly high it diminishes the value of the technical superiority to the government.

7.2 The price reasonableness evaluation will result in a determination of a fair and reasonable price to the Government. In order to determine the price reasonableness of the proposal, the Government will evaluate the offeror's proposed total estimated price for all periods of performance.

7.3 A finding of "No Confidence" in Past Performance or "Unacceptable" in Technical Capability (to include any of its respective sub factors), shall result in the entire proposal being determined unacceptable; and therefore ineligible for award. Therefore, offers receiving "Unacceptable" in Technical and/or "No Confidence" in Past Performance shall NOT be evaluated for Factor III Price.

7.4 The total evaluated price will be used for purposes of determining the best value. The Government will calculate the total evaluated price for each offeror by adding the price of the base period and all option periods. As part of the Price Factor evaluation, the Government will also evaluate the Option to Extend Services under FAR 52.217-8. Evaluation of the options WILL NOT obligate the Government to exercise the options.

8.0 General Definitions Used in Technical and Past Performance Evaluations

Best Value	Means the expected outcome of an acquisition that, in the Government's estimation, provides the greatest overall benefit in response to the requirement. See FAR 2.101
Deficiency	A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.
Recency	As it pertains to past performance information, is a measure of the elapsed time since the past performance reference occurred. Recency is generally expressed as a time period during which past performance references are considered relevant.
Relevancy	As it pertains to past performance information, is a measure of the extent of similarity between the service/support effort, complexity, dollar value, contract type, and subcontract/ teaming or other comparable attributes of past performance examples and the solicitation requirements; and a measure of the likelihood the past performance is an indicator of future performance.
Risk	As it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or subfactor may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased government oversight, and the likelihood of unsuccessful contract performance..
Significant Weakness	In the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.

Significant Strength	An aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.
Strength	Is an aspect of an offeror's proposal that has merit or exceeds specific performance or capability requirements in a way that will be advantageous to the Government during contract performance.
Subjective Tradeoff	Is a source selection process used when it may be in the best interest of the Government to consider award to other than the lowest priced offeror or other than the highest technically rated offeror but it is not possible to place a quantifiable value on proposed performance or capabilities above threshold (minimum) requirements.
Weakness	A flaw in the proposal that increases the risk of unsuccessful contract performance.

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services.

(Nov 2021)

EVALUATION-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

~~Technical~~~~Past Performance~~~~Price~~ [Contracting Officer shall insert the significant evaluation factors, such as (i) technical capability of the item offered to meet the Government requirement; (ii) price; (iii) past performance (see FAR 15.304); and include them in the relative order of importance of the evaluation factors, such as in descending order of importance.]

Technical and past performance, when combined, are more important [Contracting Officer state, in accordance with FAR 15.304, the relative importance of all other evaluation factors, when combined, when compared to price.]

(b) *Options*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)